

		containing the necessary information may be attached to show the facts that would support filing the amendment. See <i>Plummer v. Superior Court</i> (1963) 212 Cal.App.2d 841. A motion to amend must include a copy of the proposed amendment or amended pleading, state what allegations in the previous pleading are proposed to be deleted, and state what allegations are proposed to be added to the previous pleading. <i>CRC 3.1324(a)</i>. In addition, a separate declaration must accompany the motion and specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons the request for amendment was not made earlier. <i>CRC 3.1324(b)</i>. Plaintiffs have substantially complied with the requirements of <i>Rule 3.1324</i>. They seek to amend their initial complaint by adding two new causes of action against the individual defendant, who was added through a Doe amendment filed in June 2025. In the declaration filed with the moving papers, plaintiffs' counsel declares that, during the course of the litigation, he learned that the individual defendant dissolved co-defendant Green Living based on fraudulent representations that it had no claims or liabilities against it. To the extent that defense counsel, who previously represented Green Living and now only represents the individual defendant, contends that plaintiffs have not complied with their discovery obligations, defense counsel has remedies for such non-compliance in the Code. In addition, any prejudice to the individual defendant caused by permitting the amendment and the need to conduct additional discovery can be remedied by a continuance of the trial date. <i>Moving party to give notice.</i>
4.	Jarol v. Chehabi 25-1525670	Plaintiff Sherwin Jarol's Motion for leave to file a First Amended Complaint is GRANTED. The Motion complies with the form requirements of <i>CRC 3.1324</i>. No objection based upon non-compliance with the Rul1 has been raised. The Court has considered defendant Chehabi's objections to granting leave to amend and concludes they are without merit. A review of the parties' papers shows no delay plaintiff or his counsel. Indeed, they show that when defendant's counsel had the opportunity to move things along he didn't. Argument concerning the merits of the new COAs will not be considered to defeat a motion for leave to amend. [See; <i>Atkinson v. Elk Corp.</i> (2003) 109 CA4th 739, 760, 135 CR2d 433, 448 —"the better course of action would have been to allow [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings"] Finally, defendant Chehabi as not shown any legally cognizable prejudice.

		Plaintiff is ordered to file a clean version of the First Amended Complaint forthwith. Service is to be per Code. <i>Moving party is to give notice.</i>
5.	Delatorre v. Smith 25-14980567	Plaintiff Emily Betsabeth Delatorre's ("Plaintiff") Motion for Consolidation is CONTINUED. Plaintiff requests to consolidate this matter with OCSC Case No. 2026-01540797-CU-PA-CJC. In the present matter there is a motion to compel arbitration set for 08/13/26. The determination of whether the present Plaintiff should be compelled to participate in contractual arbitration would impact whether the two matters should be consolidated given the plaintiffs in the other matter do not appear to be covered by an arbitration agreement related to the underlying subject motor vehicle incident. The court continues the hearing on the present motion to 09/03/26. <i>The court will give notice.</i>
6.		<i>(off calendar)</i>
7.	Gibson Holdings, LLC v. Pure RapsCALLION, Inc. 24-1382	Before the court is an Order to Show Cause Re: Why Unrepresented Corporation Pure RapsCALLION, Inc.'s Answer Should Not Be Struck ("OSC"), which was issued on 06/04/26. On 10/02/25, the court granted Pure RapsCALLION, Inc.' ("RPI") former counsel Clark Hill LLP's motion to be relieved as counsel for RPI. (ROA 268.) Over the approximately nine months and one week since that hearing, RPI has not been represented by counsel or filed substitution of counsel. RPI was served notice of the OSC but did not file any responsive pleading or substitute in a new attorney. (ROA 334, 338.) "A court on its own motion may '[s]trike out any irrelevant, false, or improper matter inserted in any pleading' and '[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.' (<i>Code Civ.Proc.</i>, § 436.)" (<i>Greshko v. Cnty. of Los Angeles</i> (1987) 194 Cal. App. 3d 822, 830.) A corporate entity cannot participate in a lawsuit on a pro per basis and must be represented by an attorney licensed in California, RPI's lack of representation prohibits it from further participating in this lawsuit. (<i>Gutierrez v. G & M Oil Co., Inc.</i> (2010) 184 Cal.App.4th 551, 564.) As RPI has not been represented for an extended period, has not substituted in new counsel, and has not responded to the OSC, the court hereby strike's RPI's answer. (ROA 28, 36.) The court directs plaintiff Gibson Holdings, LLC ("Plaintiff") to file a request for entry of default and request for default judgment against RPI within the next 10-days. <i>Plaintiff to give notice.</i>